

HOUSE No. 2701**The Commonwealth of Massachusetts**

PRESENTED BY:

Michael J. Soter and Kenneth P. Sweezey*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote and protect safety in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/17/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/17/2025</i>
<i>Sheriff Lewis Evangelidis</i>	<i>Worcester County</i>	<i>1/17/2025</i>
<i>Sheriff Joseph McDonald</i>	<i>Plymouth County</i>	<i>1/17/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>1/22/2025</i>
<i>Marc T. Lombardo</i>	<i>22nd Middlesex</i>	<i>1/24/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/24/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/27/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/27/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/27/2025</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>1/27/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>1/27/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/28/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/29/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/29/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/4/2025</i>
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>	<i>2/5/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>2/13/2025</i>

HOUSE No. 2701

By Representatives Soter of Bellingham and Sweezey of Duxbury, a petition (accompanied by bill, House, No. 2701) of Michael J. Soter, Kenneth P. Sweezey and others for legislation to promote and protect safety in the Commonwealth. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote and protect safety in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 276 of the General Laws is hereby amended by inserting after
2 section 20R the following section:-

3 Section 20S. (a) Any employee of the Commonwealth considered a court officer pursuant
4 to Chapter 221 Sections 69A, 70A, 71A of the General Laws or any state, county or local law
5 enforcement officer, who has lawful custody of a person may, upon receipt of a written request
6 from United States Immigration and Customs Enforcement requesting detention of such person
7 on the grounds that there is probable cause that such person is a removable alien, detain such
8 person for a reasonable period of time after such person would otherwise be released from
9 custody in order to transfer custody of such person to United States Immigration and Customs
10 Enforcement, provided that such person be provided with a copy of such written request; and
11 further provided that in no circumstances shall such detention exceed 36 hours.

(b) This section shall not be construed to give rise to a private right of action and shall not be construed so as to make unlawful any arrest in this commonwealth which would otherwise be lawful.

SECTION 2. Chapter 276 of the General Laws is hereby amended by inserting at the end the following section: -

Section 104. In determining original bail, and any subsequent bail pursuant to sections 20D, 20E, 20F, 29, 42, 42A, 56A, 57, 60, 61, 62, 63, 64 68, 70, 82, 82A, of Chapter 276 the Judicial Officer presiding over the status of the bail hearing of the individual shall consider the existence of an Immigrations and Customs Enforcement Detainer request from the United States Immigrations and Customs Enforcement Office. If a written request from United States Immigration and Customs Enforcement requesting detention of such person on the grounds that there is probable cause that such person is a removable alien and (2) an administrative warrant for arrest or warrant of removal/deportation exists then the Judicial Officer shall have grounds to withhold or modify bail pending action on the request from Immigrations and Customs Enforcement.